

OASIS RV RESORT OWNERS ASSOCIATION DOCUMENTS

Term	Definition
Document/Step	
A.	Charter Documents
1.	Bylaws
B.	Documents Filed with Registrar
2.	Bylaw Alteration Application



SINEAD O'CALLAGHAN

BYLAWS

PART 1- INTERPRETATION

- 1.1 In these bylaws, unless the context otherwise requires:
- (a) "directors" means the directors of the society for the time being,
 - (b) "Act" means the Society Act of British Columbia from time to time in force and all amendments to it;
 - (c) "registered address" of a member means the members address as recorded in the register of members.
- 1.2 The definitions in the Act on the date these bylaws become effective apply to these bylaws.
- 1.3 Reference herein to the "Owners Association" means the society.
- 1.4 Words importing the singular include the plural and vice versa, and words importing a male person include a female person and a corporation.

PART 2- MEMBERSHIP

- 2.1 The members of the society are the applicants for incorporation of the society, and those persons who subsequently become members, in accordance with these bylaws and, in either case, have not ceased to be members.
- 2.2 That property located at Osoyoos, in the Province of British Columbia and described as Lot A DU 00 SDYD Plan KAP67585 (hereinafter referred to as "Lot A") is an existing recreational vehicle resort (Oasis RV Resort") which is owned by Oasis R.V. Park Ltd. Lot A has been approved, pursuant to the Real Estate Act of British Columbia, as a shared interest development ("Shared Interests") wherein Lot A will be divided into one hundred and five (105) undivided interests. Oasis RV Park Ltd. will sell shared interests to the public. Until the "Turnover Date", being the date which is the earlier of the date when the last of the 105 undivided interests has been sold and transferred by Oasis RSV. Park Ltd., or the date on which Oasis R.V. Park Ltd. determines that sufficient sales have been made, or January 1st, 2005, membership in the Owners Association shall be restricted to the applicants for incorporation of the Owners Association. Following the Turnover Date, all of the members of the Association shall be persons who are registered owners of an undivided interest in Lot A and who have signed a co-owners agreement (the "Co-owners Agreement"). All said co-owners may apply for membership and will become members of the Owners Association at the Turnover Date or such date that the application is approved by the directors if the application is made after the Turnover Date. If a Shared Interest is owned by one or more persons then the first named person on the Certificate of Title as issued by the Land Title Office for that

Shared Interest may become the member. Each Shared Interest will entitle the Shared Interest owner to the exclusive use of a portion of Lot A pursuant to the Co-owners Agreement and the portion of Lot A so identified is referred to as a "site" for the purposes of these bylaws. The use of any site within Oasis RV Resort will be governed by the provisions contained in the Co-owners Agreement.

- 2.3 A person who is a registered owner of a 1/105th undivided interest in Lot A may apply to the directors for membership in the Society and each such applicant shall be approved by the directors for membership and shall become a member effective on the Turnover Date or such date the application is approved by the directors if the application is made after the Turnover Date. The membership in the society shall continue during such time as the member owns an undivided interest in Lot A.
- 2.4 Every member must uphold the constitution and comply with these bylaws.
- 2.5 The amount of the first annual membership dues must be determined by the directors and after that the annual membership dues must be determined at the annual general meeting of the society.
- 2.6 A person ceases to be a member of the society
 - (a) by delivering his or her resignation in writing to the secretary of the society or by mailing or delivering it to the address of the society:
 - (i) on his or her death or, in the case of a corporation, on dissolution, on being expelled;
 - (ii) on having been a member not in good standing for 12 consecutive months; or
 - (iii) upon transferring the ownership of the members undivided interest.
- 2.7 A member may be expelled by a special resolution of the members passed at a general meeting.
- 2.8 The notice of special resolution for expulsion must be accompanied by a brief statement of the reasons for the proposed expulsion.
- 2.9 The person who is the subject of the proposed resolution for expulsion must be given an opportunity to be heard at the general meeting before the special resolution is put to a vote.
- 2.10 All members are in good standing except a member who has failed to pay his or her current annual membership fee, or any other subscription or debt due and owing by the member to the society, and the member is not in good standing so long as the debt remains unpaid.

PART 3- MEETINGS OF MEMBERS

- 3.1 General meetings of the society must be held at the time and place, in accordance with the Act, that the directors decide.
- 3.2 Every general meeting, other than an annual general meeting, is an extraordinary general meeting.
- 3.3 The directors may, when they think fit, convene an extraordinary general meeting.
- 3.4 Notice of a general meeting must specify the place, day and hour of the meeting, and, in case of special business, the general nature of that business.
- 3.5 The accidental omission to give notice of a meeting to, or the non-receipt of a notice by, any of the members entitled to receive notice does not invalidate proceedings at that meeting.
- 3.6 The first annual general meeting of the society must be held not more than 15 months after the date of incorporation and after that an annual general meeting must be held at least once in every calendar year and not more than 15 months after the holding of the last preceding annual general meeting.

PART 4- PROCEEDINGS AT GENERAL MEETINGS

- 4.1 Special business is
 - (a) all business at an extraordinary general meeting except the adoption of rules of order, and
 - (b) all business conducted at an annual general meeting, except the following: (i)
the adoption of rules of order;
 - (ii) the consideration of the financial statements;
 - (iii) the report of the directors;
 - (iv) the report of the auditor, if any;
 - (v) the election of directors;
 - (vi) the appointment of the auditor, if required; or
 - (vii) the other business that, under these bylaws, ought to be conducted at an annual general meeting, or business that is brought under consideration by the report of the directors issued with the notice convening the meeting.

- 4.2 Business, other than the election of a chair and the adjournment or termination of the meeting must not be conducted at a general meeting at a time when a quorum is not present.
- 4.3 If at any time during a general meeting there ceases to be a quorum present, business then in progress must be suspended until there is a quorum present or until the meeting is adjourned or terminated.
- 4.4 A quorum is 3 members present or a greater number that the members may determine at a general meeting.
- 4.5 If within 30 minutes from the time appointed for a general meeting a quorum is not present, the meeting, if convened on the requisition of members, must be terminated, but in any other case, it must stand adjourned to the same day in the next week, at the same time and place, and if, at the adjourned meeting, a quorum is not present within 30 minutes from the time appointed for the meeting, the members present constitute a quorum, provided there is never less than 3 members present at an times.
- 4.6 Subject to bylaw 20, the president of the society, the vice president or, in the absence of both, one of the other directors present, must preside as chair of a general meeting.
- 4.7 If at a general meeting:
- (a) there is no president, vice president or other director present within 15 minutes after the time appointed for holding the meeting, or
 - (b) the president and all the other directors present are unwilling to act as the chair, the members present must choose one of their number to be the chair.
- 4.8 A general meeting may be adjourned from time to time and from place to place, but business must not be conducted at an adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
- 4.9 When a meeting is adjourned for 10 days or more, notice of the adjourned meeting must be given as in the case of the original meeting.
- 4.10 Except as provided in this bylaw, it is not necessary to give notice of an adjournment or of the business to be conducted at an adjourned general meeting.
- 4.11 A resolution proposed at a meeting need not be seconded, and the chair of a meeting may move or propose a resolution.
- 4.12 In the case of a tie vote, the chair does not have a casting or second vote in addition to the vote to which he or she may be entitled as a member and the proposed resolution does not pass.
- 4.13 A member in good standing present at a meeting of members is entitled to one vote.
- 4.14 Voting is by show of hands.

- 4.15 Every member entitled to vote at a meeting of members may, by means of a proxy, appoint a person, who must be a voting member in good standing of the Owners Association, as his or her nominee to attend and speak and vote on his or her behalf at the meeting or any adjournment thereof.
- 4.16 The instrument appointing a proxy shall be in writing executed by the member or by his or her attorney authorized in writing and such instrument and the authority (if any) under which it is signed, shall be received by a designated person appointed by the directors at least three business days before the time specified for the meeting at which the person named in the instrument proposes to vote and in default the instrument of proxy shall not be treated as valid.
- 4.17 A proxy may be revoked by instrument in writing executed by the member or by his or her attorney authorized in writing and deposited with the president of the Owners Association at any time up to 5:00 o'clock in the afternoon of the last business day preceding the day of the meeting, or any adjournment thereof, at which the proxy is to be used. Upon such deposit, the proxy is revoked.
- 4.18 A vote given by proxy shall be effective notwithstanding the revocation of the authority, providing the Owners Association has not received notice of the revocation within the time and in the manner herein specified.
- 4.19 The only instrument of proxy that shall be recognized at any general meeting of the members of the Owners Association are those which are in the same form as the form of proxy furnished by the Owners Association, provided, that if the form of proxy contains the designation of a named person as nominee, then means shall be provided in the form of proxy whereby a member entitled to vote may designate some other voting member as his or her nominee.
- 4.20 A corporate member may vote by its authorized representative, who is entitled to speak and vote, and in all other respects exercise the rights of a member, and that representative must be considered as a member for all purposes with respect to a meeting of the society.

PART 5 - DIRECTORS AND OFFICERS

- 5.1 The directors may exercise all the powers and do all the acts and things that the society may exercise and do, and that are not by these bylaws or by statute or otherwise lawfully directed or required to be exercised or done by the society in a general meeting, but subject, nevertheless, to:
- (a) all laws affecting the society;
 - (b) these bylaws; and

(c) rules, not being inconsistent with these bylaws, that are made from time to time by the society in a general meeting.

5.2 A rule, made by the society in a general meeting, does not invalidate a prior act of the directors that would have been valid if that rule had not been made.

5.3 The president, vice president, secretary-treasurer and two additional directors are the directors of the society.

5.4 The number of directors must be 5 or a greater number determined from time to time at a general meeting.

5.5 A director's term of office expires two years after the director's designation, election or appointment, but will be eligible for re-election at the next annual general meeting to a maximum of two additional terms for a maximum of three terms in succession. After a director has served three terms, they must step down for a minimum of one term prior to letting their name stand for election.

Exception to the above is if no other eligible candidate from the co-owners comes forward, that director may run again.

5.6 Separate elections must be held for each office to be filled.

5.7 An election may be by acclamation, otherwise it must be by ballot.

5.8 If a successor is not elected, the person previously elected or appointed continues to hold office.

5.9 The directors may at any time and from time to time appoint a member as a director to fill a vacancy in the directors.

5.10 A director so appointed will hold office for a term of 2 years, but is eligible for re-election at the meeting.

5.11 If a director resigns his or her office or otherwise ceases to hold office, the remaining directors must appoint a member to take the place of the former director.

5.12 An act or proceeding of the directors is not invalid merely because there are less than the prescribed number of directors in office.

5.13 The members may, by special resolution, remove a director, before the expiration of his or her term of office, and may elect a successor to complete the term of office.

5.14 A director must not be remunerated for being or acting as a director but a director must be reimbursed for all expenses necessarily and reasonably incurred by the director while engaged in the affairs of the society.

PART 6 - PROCEEDINGS OF DIRECTORS

6.1 The directors may meet at the places they think fit to conduct business, adjourn and

otherwise regulate their meetings and proceedings, as they see fit.

- 6.2 The directors may from time to time set the quorum necessary to conduct business, and unless so set the quorum is a majority of the directors then in office.
- 6.3 The president is the chair of all meetings of the directors, but if at a meeting the president is not present within 30 minutes after the time appointed for holding the meeting, the vice president must act as chair, but if neither is present the directors present may choose one of their number to be the chair at that meeting.
- 6.4 A director may at any time, and the secretary, on the request of a director, must, convene a meeting of the directors.
- 6.5 The directors may delegate any, but not all, of their powers to committees consisting of the director or directors as they think fit.
- 6.6 A committee so formed in the exercise of the powers so delegated must conform to any rules imposed on it by the directors and must report every act or thing done in exercise of those powers to the earliest meeting of the directors held after the act or thing has been done.
- 6.7 A committee must elect a chair of its meetings, but if no chair is elected, or if at a meeting the chair is not present within 30 minutes after the time appointed for holding the meeting, the directors present who are members of the committee must choose one of their number to be the chair of the meeting.
- 6.8 The members of a committee may meet and adjourn as they think proper.
- 6.9 For a first meeting of directors held immediately following the appointment or election of a director or directors at an annual or other general meeting of members, or for a meeting of the directors at which a director is appointed to fill a vacancy in the directors, it is not necessary to give notice of the meeting to the newly elected or appointed director or directors for the meeting to be constituted, if a quorum of the directors is present.
- 6.10 A director who may be absent temporarily from British Columbia may send or deliver to the address of the society a waiver of notice, which may be by letter, telegram, telex or cable, of any meeting of the directors and may at any time withdraw the waiver, and until the waiver is withdrawn:
 - (a) a notice of meeting of directors is not required to be sent to that director; and
 - (b) any and all meetings of the directors of the society, notice of which has not been given to that director if a quorum of the directors is present, are valid and effective.
- 6.11 Questions arising at a meeting of the directors and committee of directors must be decided by a majority of votes.

- 6.12 In the case of a tie vote, the chair does not have a second or casting vote.
- 6.13 A resolution proposed at a meeting of directors or committee of directors need not be seconded, and the chair of a meeting may move or propose a resolution.
- 6.14 A resolution in writing, signed by all the directors and placed with the minutes of the directors, is as valid and effective as if regularly passed at a meeting of directors.

PART 7- DUTIES OF OFFICERS

- 7.1 The president presides at all meetings of the society and of the directors.
- 7.2 The president is the chief executive officer of the society and must supervise the other officers in the execution of their duties.
- 7.3 The vice president must carry out the duties of the president during the presidents absence.
- 7.4 The secretary must do the following:
 - (a) conduct the correspondence of the society;
 - (b) issue notices of meetings of the society and directors;
 - (c) keep minutes of all meetings of the society and directors;
 - (d) have custody of all records and documents of the society except those required to be kept by the treasurer;
 - (e) have custody of the common seal of the society; and
 - (f) maintain the register of members.
- 7.5 The treasurer must:
 - (a) keep the financial records, including books of account, necessary to comply with the Act; and
 - (b) render financial statements to the directors, members and others when required.
- 7.6 The offices of secretary and treasurer may be held by one person who is to be known as the secretary treasurer.
- 7.7 In the absence of the secretary from a meeting, the directors must appoint another person to act as secretary at the meeting.

PART 8- PART 8 SEAL

- 8.1 The directors may provide a common seal for the society and may destroy a seal and substitute a new seal in its place.
- 8.2 The common seal must be affixed only when authorized by a resolution of the directors and then only in the presence of the persons specified in the resolution, or if no persons are

specified, in the presence of the president and secretary or president and secretary treasurer.

PART 9 - BORROWING

- 9.1 In order to carry out the purposes of the society the directors may, on behalf of and in the name of the society, raise or secure the payment or repayment of money in the manner they decide, and, in particular but without limiting that power, by the issue of debentures.
- 9.2 A debenture must not be issued without the authorization of a special resolution.
- 9.3 The members may, by special resolution, restrict the borrowing powers of the directors, but a restriction imposed expires at the next annual general meeting.

PART 10 - AUDITOR

- 10.1 This Part applies only if the society is required or has resolved to have an auditor.
- 10.2 The first auditor must be appointed by the directors who must also fill all vacancies occurring in the office of auditor.
- 10.3 At each annual general meeting the society must appoint an auditor to hold office until the auditor is re-elected or a successor is elected at the next annual general meeting.
- 10.4 An auditor may be removed by ordinary resolution.
- 10.5 An auditor must be promptly informed in writing of the auditor's appointment or removal.
- 10.6 A director or employee of the society must not be its auditor.
- 10.7 The auditor may attend general meetings.

PART 11 - NOTICES TO MEMBERS

- 11.1 A notice may be given to a member, either personally or by mail to the member at the members registered address.
- 11.2 A notice sent by mail is deemed to have been given on the second day following the day on which the notice is posted, and in proving that notice has been given, it is sufficient to prove the notice was properly addressed and put in a Canadian post office receptacle.
- 11.3 Notice of a general meeting must be given to:
 - (a) every member shown on the register of members on the day notice is given; and
 - (b) the auditor, if Part 10 applies.
- 11.4 No other person is entitled to receive a notice of a general meeting.

PART 12- BYLAWS

- 12.1 On being admitted to membership, each member is entitled to, and the society must give the member without charge, a copy of the constitution and bylaws of the society.
- 12.2 These bylaws must not be altered or added to except by special resolution.



CERTIFIED COPY
Of a document filed with the
Province of British Columbia
Registrar of Companies

SINEAD O' CALLAGHAN

BYLAW ALTERATION APPLICATION

BC Society • Societies Act

NAME OF SOCIETY: **OASIS RV RESORT OWNERS ASSOCIATION**

Incorporation Number: S0042357

Business Number: 88873 4415 BC0001

Filed Date and Time: May 5, 2025 01:33 PM Pacific Time

SUMMARY OF BYLAW ALTERATION APPLICATION

Special Resolution Date: September 14, 2024

Our Society is altering a provision that was either a previously unalterable provision or a reporting society provision.

NOTE: The complete Bylaws, as uploaded, appear at the end of this report.

CERTIFICATION

I, Aidan Poitras, certify that I have relevant knowledge of the society, and that I am authorized to make this filing.



NOTE: The complete Bylaws, as uploaded, continue on the next page

BYLAWS

PART 1- INTERPRETATION

- 1.1 In these bylaws, unless the context otherwise requires:
- (a) "directors" means the directors of the society for the time being,
 - (b) "Act" means the Society Act of British Columbia from time to time in force and all amendments to it;
 - (c) "registered address" of a member means the members address as recorded in the register of members.
- 1.2 The definitions in the Act on the date these bylaws become effective apply to these bylaws.
- 1.3 Reference herein to the "Owners Association" means the society.
- 1.4 Words importing the singular include the plural and vice versa, and words importing a male person include a female person and a corporation.

PART 2- MEMBERSHIP

- 2.1 The members of the society are the applicants for incorporation of the society, and those persons who subsequently become members, in accordance with these bylaws and, in either case, have not ceased to be members.
- 2.2 That property located at Osoyoos, in the Province of British Columbia and described as Lot A DU 00 SDYD Plan KAP67585 (hereinafter referred to as "Lot A") is an existing recreational vehicle resort (Oasis RV Resort") which is owned by Oasis R.V. Park Ltd. Lot A has been approved, pursuant to the Real Estate Act of British Columbia, as a shared interest development ("Shared Interests") wherein Lot A will be divided into one hundred and five (105) undivided interests. Oasis RV Park Ltd. will sell shared interests to the public. Until the "Turnover Date", being the date which is the earlier of the date when the last of the 105 undivided interests has been sold and transferred by Oasis RSV. Park Ltd., or the date on which Oasis R.V. Park Ltd. determines that sufficient sales have been made, or January 1st, 2005, membership in the Owners Association shall be restricted to the applicants for incorporation of the Owners Association. Following the Turnover Date, all of the members of the Association shall be persons who are registered owners of an undivided interest in Lot A and who have signed a co-owners agreement (the "Co-owners Agreement"). All said co-owners may apply for membership and will become members of the Owners Association at the Turnover Date or such date that the application is approved by the directors if the application is made after the Turnover Date. If a Shared Interest is owned by one or more persons then the first named person on the Certificate of Title as issued by the Land Title Office for that

Shared Interest may become the member. Each Shared Interest will entitle the Shared Interest owner to the exclusive use of a portion of Lot A pursuant to the Co-owners Agreement and the portion of Lot A so identified is referred to as a "site" for the purposes of these bylaws. The use of any site within Oasis RV Resort will be governed by the provisions contained in the Co-owners Agreement.

- 2.3 A person who is a registered owner of a 1/105th undivided interest in Lot A may apply to the directors for membership in the Society and each such applicant shall be approved by the directors for membership and shall become a member effective on the Turnover Date or such date the application is approved by the directors if the application is made after the Turnover Date. The membership in the society shall continue during such time as the member owns an undivided interest in Lot A.
- 2.4 Every member must uphold the constitution and comply with these bylaws.
- 2.5 The amount of the first annual membership dues must be determined by the directors and after that the annual membership dues must be determined at the annual general meeting of the society.
- 2.6 A person ceases to be a member of the society
 - (a) by delivering his or her resignation in writing to the secretary of the society or by mailing or delivering it to the address of the society:
 - (i) on his or her death or, in the case of a corporation, on dissolution, on being expelled;
 - (ii) on having been a member not in good standing for 12 consecutive months; or
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- 2.7 A member may be expelled by a special resolution of the members passed at a general meeting.
- 2.8 The notice of special resolution for expulsion must be accompanied by a brief statement of the reasons for the proposed expulsion.
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- 3.1 General meetings of the society must be held at the time and place, in accordance with the Act, that the directors decide.
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- 3.5 The accidental omission to give notice of a meeting to, or the non-receipt of a notice by, any of the members entitled to receive notice does not invalidate proceedings at that meeting.
- 3.6 The first annual general meeting of the society must be held not more than 15 months after the date of incorporation and after that an annual general meeting must be held at least once in every calendar year and not more than 15 months after the holding of the last preceding annual general meeting.

PART 4- PROCEEDINGS AT GENERAL MEETINGS

- 4.1 Special business is
 - (a) all business at an extraordinary general meeting except the adoption of rules of order, and
 - (b) all business conducted at an annual general meeting, except the following: (i) the adoption of rules of order;
 - (ii) the consideration of the financial statements;
 - (iii) the report of the directors;
 - (iv) the report of the auditor, if any;
 - (v) the election of directors;
 - (vi) the appointment of the auditor, if required; or
 - (vii) the other business that, under these bylaws, ought to be conducted at an annual general meeting, or business that is brought under consideration by the report of the directors issued with the notice convening the meeting.

- 4.2 Business, other than the election of a chair and the adjournment or termination of the meeting must not be conducted at a general meeting at a time when a quorum is not present.
- 4.3 If at any time during a general meeting there ceases to be a quorum present, business then in progress must be suspended until there is a quorum present or until the meeting is adjourned or terminated.
- 4.4 A quorum is 3 members present or a greater number that the members may determine at a general meeting.
- 4.5 If within 30 minutes from the time appointed for a general meeting a quorum is not present, the meeting, if convened on the requisition of members, must be terminated, but in any other case, it must stand adjourned to the same day in the next week, at the same time and place, and if, at the adjourned meeting, a quorum is not present within 30 minutes from the time appointed for the meeting, the members present constitute a quorum, provided there is never less than 3 members present at an times.
- 4.6 Subject to bylaw 20, the president of the society, the vice president or, in the absence of both, one of the other directors present, must preside as chair of a general meeting.
- 4.7 If at a general meeting:
- (a) there is no president, vice president or other director present within 15 minutes after the time appointed for holding the meeting, or
 - (b) the president and all the other directors present are unwilling to act as the chair, the members present must choose one of their number to be the chair.
- 4.8 A general meeting may be adjourned from time to time and from place to place, but business must not be conducted at an adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
- 4.9 When a meeting is adjourned for 10 days or more, notice of the adjourned meeting must be given as in the case of the original meeting.
- 4.10 Except as provided in this bylaw, it is not necessary to give notice of an adjournment or of the business to be conducted at an adjourned general meeting.
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- 4.12 In the case of a tie vote, the chair does not have a casting or second vote in addition to the vote to which he or she may be entitled as a member and the proposed resolution does not pass.
- 4.13 A member in good standing present at a meeting of members is entitled to one vote.
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- 4.15 Every member entitled to vote at a meeting of members may, by means of a proxy, appoint a person, who must be a voting member in good standing of the Owners Association, as his or her nominee to attend and speak and vote on his or her behalf at the meeting or any adjournment thereof.
- 4.16 The instrument appointing a proxy shall be in writing executed by the member or by his or her attorney authorized in writing and such instrument and the authority (if any) under which it is signed, shall be received by a designated person appointed by the directors at least three business days before the time specified for the meeting at which the person named in the instrument proposes to vote and in default the instrument of proxy shall not be treated as valid.
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- 4.20 A corporate member may vote by its authorized representative, who is entitled to speak and vote, and in all other respects exercise the rights of a member, and that representative must be considered as a member for all purposes with respect to a meeting of the society.

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- (a) all laws affecting the society;
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(c) rules, not being inconsistent with these bylaws, that are made from time to time by the society in a general meeting.

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5.4 The number of directors must be 5 or a greater number determined from time to time at a general meeting.

5.5 A director's term of office expires two years after the director's designation, election or appointment, but will be eligible for re-election at the next annual general meeting to a maximum of two additional terms for a maximum of three terms in succession. After a director has served three terms, they must step down for a minimum of one term prior to letting their name stand for election.

Exception to the above is if no other eligible candidate from the co-owners comes forward, that director may run again.

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5.7 An election may be by acclamation, otherwise it must be by ballot.

5.8 If a successor is not elected, the person previously elected or appointed continues to hold office.

5.9 The directors may at any time and from time to time appoint a member as a director to fill a vacancy in the directors.

5.10 A director so appointed will hold office for a term of 2 years, but is eligible for re-election at the meeting.

5.11 If a director resigns his or her office or otherwise ceases to hold office, the remaining directors must appoint a member to take the place of the former director.

5.12 An act or proceeding of the directors is not invalid merely because there are less than the prescribed number of directors in office.

5.13 The members may, by special resolution, remove a director, before the expiration of his or her term of office, and may elect a successor to complete the term of office.

5.14 A director must not be remunerated for being or acting as a director but a director must be reimbursed for all expenses necessarily and reasonably incurred by the director while engaged in the affairs of the society.

PART 6 - PROCEEDINGS OF DIRECTORS

6.1 The directors may meet at the places they think fit to conduct business, adjourn and

otherwise regulate their meetings and proceedings, as they see fit.

- 6.2 The directors may from time to time set the quorum necessary to conduct business, and unless so set the quorum is a majority of the directors then in office.
- 6.3 The president is the chair of all meetings of the directors, but if at a meeting the president is not present within 30 minutes after the time appointed for holding the meeting, the vice president must act as chair, but if neither is present the directors present may choose one of their number to be the chair at that meeting.
- 6.4 A director may at any time, and the secretary, on the request of a director, must, convene a meeting of the directors.
- 6.5 The directors may delegate any, but not all, of their powers to committees consisting of the director or directors as they think fit.
- 6.6 A committee so formed in the exercise of the powers so delegated must conform to any rules imposed on it by the directors and must report every act or thing done in exercise of those powers to the earliest meeting of the directors held after the act or thing has been done.
- 6.7 A committee must elect a chair of its meetings, but if no chair is elected, or if at a meeting the chair is not present within 30 minutes after the time appointed for holding the meeting, the directors present who are members of the committee must choose one of their number to be the chair of the meeting.
- 6.8 The members of a committee may meet and adjourn as they think proper.
- 6.9 For a first meeting of directors held immediately following the appointment or election of a director or directors at an annual or other general meeting of members, or for a meeting of the directors at which a director is appointed to fill a vacancy in the directors, it is not necessary to give notice of the meeting to the newly elected or appointed director or directors for the meeting to be constituted, if a quorum of the directors is present.
- 6.10 A director who may be absent temporarily from British Columbia may send or deliver to the address of the society a waiver of notice, which may be by letter, telegram, telex or cable, of any meeting of the directors and may at any time withdraw the waiver, and until the waiver is withdrawn:
 - (a) a notice of meeting of directors is not required to be sent to that director; and
 - (b) any and all meetings of the directors of the society, notice of which has not been given to that director if a quorum of the directors is present, are valid and effective.
- 6.11 Questions arising at a meeting of the directors and committee of directors must be decided by a majority of votes.

- 6.12 In the case of a tie vote, the chair does not have a second or casting vote.
- 6.13 A resolution proposed at a meeting of directors or committee of directors need not be seconded, and the chair of a meeting may move or propose a resolution.
- 6.14 A resolution in writing, signed by all the directors and placed with the minutes of the directors, is as valid and effective as if regularly passed at a meeting of directors.

PART 7- DUTIES OF OFFICERS

- 7.1 The president presides at all meetings of the society and of the directors.
- 7.2 The president is the chief executive officer of the society and must supervise the other officers in the execution of their duties.
- 7.3 The vice president must carry out the duties of the president during the presidents absence.
- 7.4 The secretary must do the following:
 - (a) conduct the correspondence of the society;
 - (b) issue notices of meetings of the society and directors;
 - (c) keep minutes of all meetings of the society and directors;
 - (d) have custody of all records and documents of the society except those required to be kept by the treasurer;
 - (e) have custody of the common seal of the society; and
 - (f) maintain the register of members.
- 7.5 The treasurer must:
 - (a) keep the financial records, including books of account, necessary to comply with the Act; and
 - (b) render financial statements to the directors, members and others when required.
- 7.6 The offices of secretary and treasurer may be held by one person who is to be known as the secretary treasurer.
- 7.7 In the absence of the secretary from a meeting, the directors must appoint another person to act as secretary at the meeting.

PART 8- PART 8 SEAL

- 8.1 The directors may provide a common seal for the society and may destroy a seal and substitute a new seal in its place.
- 8.2 The common seal must be affixed only when authorized by a resolution of the directors and then only in the presence of the persons specified in the resolution, or if no persons are

specified, in the presence of the president and secretary or president and secretary treasurer.

PART 9 - BORROWING

- 9.1 In order to carry out the purposes of the society the directors may, on behalf of and in the name of the society, raise or secure the payment or repayment of money in the manner they decide, and, in particular but without limiting that power, by the issue of debentures.
- 9.2 A debenture must not be issued without the authorization of a special resolution.
- 9.3 The members may, by special resolution, restrict the borrowing powers of the directors, but a restriction imposed expires at the next annual general meeting.

PART 10 - AUDITOR

- 10.1 This Part applies only if the society is required or has resolved to have an auditor.
- 10.2 The first auditor must be appointed by the directors who must also fill all vacancies occurring in the office of auditor.
- 10.3 At each annual general meeting the society must appoint an auditor to hold office until the auditor is re-elected or a successor is elected at the next annual general meeting.
- 10.4 An auditor may be removed by ordinary resolution.
- 10.5 An auditor must be promptly informed in writing of the auditor's appointment or removal.
- 10.6 A director or employee of the society must not be its auditor.
- 10.7 The auditor may attend general meetings.

PART 11 - NOTICES TO MEMBERS

- 11.1 A notice may be given to a member, either personally or by mail to the member at the members registered address.
- 11.2 A notice sent by mail is deemed to have been given on the second day following the day on which the notice is posted, and in proving that notice has been given, it is sufficient to prove the notice was properly addressed and put in a Canadian post office receptacle.
- 11.3 Notice of a general meeting must be given to:
 - (a) every member shown on the register of members on the day notice is given; and
 - (b) the auditor, if Part 10 applies.
- 11.4 No other person is entitled to receive a notice of a general meeting.

PART 12- BYLAWS

- 12.1 On being admitted to membership, each member is entitled to, and the society must give the member without charge, a copy of the constitution and bylaws of the society.
- 12.2 These bylaws must not be altered or added to except by special resolution.